CONSTITUTION OF INDIA (COI)

(BNC501/ BNC601)

Unit 1-

Introduction and Basic Information about Indian Constitution: Meaning of the constitution law and constitutionalism, Historical Background of the Constituent Assembly, Government of India Act of 1935 and Indian Independence Act of 1947,Enforcement of the Constitution, Indian Constitution and its Salient Features, The Preamble of the Constitution, Fundamental Rights, Fundamental Duties, Directive Principles of State Policy, Parliamentary System, Federal System, Centre-State Relations, Amendment of the Constitutional Powers and Procedure, The historical perspectives of the constitutional amendments in India, Emergency Provisions: National Emergency, President Rule, Financial Emergency, and Local Self Government – Constitutional Scheme in India.

Introduction and Basic Information about Indian Constitution

Meaning of Constitution:

The Constitution of India is the highest law in independent India. It is the longest written constitution of any democratic country in the world.

A constitution is the main law of a country that explains how the government will work, what powers different parts of the government have, and the basic principles the society will follow.

Constitutionalism:

The doctrine or system of government in which governing power is constrained by enforceable laws, and power is distributed with checks and balances to ensure the protection of the fundamental rights of individuals and groups.

Historical Background of the Constituent Assembly

Constituent Assembly

The Constituent Assembly of India was formed in 1946 to draft the country's Constitution, based on recommendations from the Cabinet Mission. It had 389 members, representing both British India and the Princely States. The first meeting took place on December 9, 1946, with Dr. Sachchidananda Sinha as the temporary Chairman. Dr. Rajendra Prasad was later elected as the President on December 11, 1946.

The Assembly worked for about three years and became India's first parliament after independence.

The Constitution of India was created by the Constituent Assembly, which began its work in December 1946 and completed it in just under three years. After the partition, the Assembly had 299 members who carefully discussed each clause.

The Constitution was adopted on November 26, 1949, and came into effect on January 26, 1950. November 26 is now celebrated as Constitution Day, and January 26 as Republic Day.

Functions of the Constituent Assembly:

1. Framed the Constitution of India.

2. Enacted laws and participated in key decision-making processes.

3. Adopted the National Flag on July 22, 1947.

4. Elected Dr. Rajendra Prasad as India's first President on January 24, 1950.

5. Adopted the National Anthem on January 24, 1950.

6. Adopted the National Song on January 24, 1950.

Government of India Act 1935

The Government of India Act of 1935, passed by the British Parliament, was its longest act at the time. It was split into the Government of India Act and the Government of Burma Act. The act drew from sources like the Simon Commission report and the Third Round Table Conference. It ended the dyarchy system from the 1919 Act and proposed an Indian Federation of British provinces and princely states, though the federation never materialized due to lack of participation from the princely states.

Salient features

1. Abolished provincial dyarchy and introduced dyarchy at the center.

2. British Parliament remained supreme.

3. Separated Burma from India.

4. Proposed an All India Federation with British India and princely states.

5. Provided strong protections for minorities.

Indian Independence Act of 1947

The Indian Independence Act, passed by the British Parliament on 18 July 1947, created two independent Dominions: India and Pakistan. British provinces joined either India or Pakistan based on their majority religion (Hindu or Muslim). The princely states were free to choose between the two. India gained independence on 15 August 1947.

Salient features

1. It established two dominion states: India and Pakistan.

2. British authority over princely states ended, allowing them to join either India or Pakistan or remain independent.

3. The constituent assemblies of both states could create their own constitutions.

4. The British government no longer had control over the dominions.

Indian Constitution and its Salient Features

Salient Features:

1. **Written Constitution**: It is a formal, written document.

2. **Lengthy Document:** It is one of the longest constitutions in the world.

3. **Diverse Sources:** It is derived from various sources.

4. **Single Citizenship:** All Indians are citizens of India, regardless of where they live.

5. **Flexible:** It can be amended more easily compared to rigid constitutions.

6. **Universal Adult Franchise:** Every adult citizen has the right to vote.

7. **Fundamental Rights:** Guarantees essential rights to all citizens.

The Preamble of the Constitution

A preamble is an introductory statement in a document that explains the document's philosophy and objectives.

In a Constitution, it presents the intention of its framers, the history behind its creation, and the core values and principles of the nation.

Key Terms:

- **We, the people of India:** Indicates that the power lies with the people.
- **Sovereign:** India has independent authority and is not controlled by any outside power.
- **Socialist:** Aims for socialist goals through democratic means, allowing both private and public sectors.
- **Secular:** All religions receive equal respect and protection from the state.
- **Democratic:** The Constitution derives its authority from the will of the people, expressed through elections.
- **Republic:** The head of the state is elected, with the President of India serving in this role.

Fundamental Rights

Fundamental rights are the basic human rights enshrined in the Constitution of India which are guaranteed to all citizens. They are applied without discrimination on the basis of race, religion, gender, etc.

There are 6 Fundamental rights which are given by the Indian constitution.

1) Right to Equality :

The constitutional articles related to right to equality are mentioned in **Articles 14 - 18**. It guarantees equal rights for everyone, irrespective of religion, gender, caste, race or place of birth.

2) Right to Freedom :

The constitutional articles related to right to freedom are mentioned in **Articles 19 - 22**. Freedom is the most important ideals of any democratic society. The Indian Constitution guarantees freedom to citizens.

3) Right against exploitation :

The constitutional articles related to right against exploitation are mentioned in **Articles 23 - 24**. This right implies the prohibition of traffic in human beings, begar, and other forms of forced labour.

4) Right to Freedom of Religion :

The constitutional articles related to right to freedom of religion are mentioned in **Articles 25 - 28**. Every person has the right to freely practice his or her faith, establish and maintain religious and charitable institutions.

5) Cultural and Educational Rights :

The constitutional articles related to cultural and educational rights are mentioned in **Articles 29 - 30**. These rights protect the rights of religious, cultural and linguistic minorities, by facilitating them to preserve their heritage and culture.

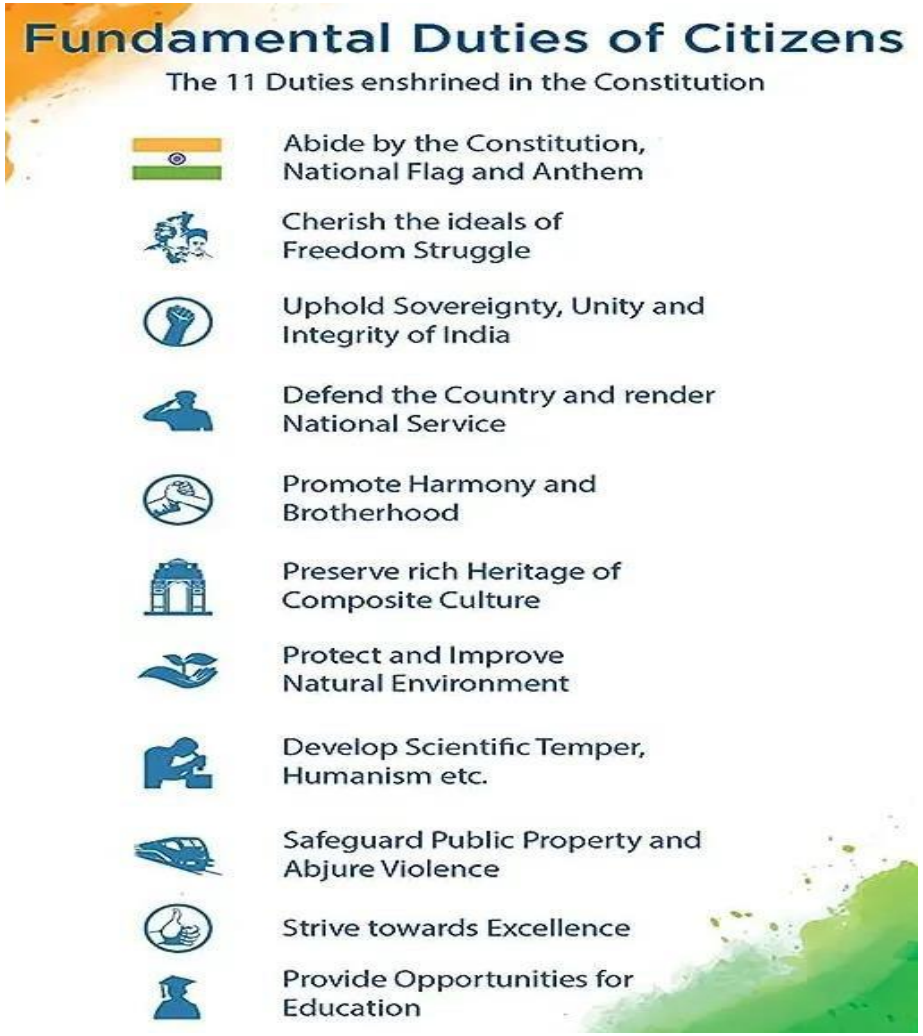
6) Right to Constitutional Remedies :

The constitutional articles related to right to constitutional remedies are mentioned in **Articles 32**. The Constitution guarantees remedies if citizens' fundamental rights are violated.

Fundamental duties

Fundamental duties are a set of responsibilities that Indian citizens have towards their society, nation, and fellow citizens.

The list of 11 Fundamental Duties under article 51-A to be obeyed by every Indian citizen is given as:



Directive Principles of State Policy

The Indian Constitution did not originally categorize the Directive Principles of State Policy (DPSPs), but they are generally classified into three types based on their content and direction:

Socialistic Principles: Emphasizes equal opportunity and socio-economic justice
Gandhian Principles: Includes articles such as organizing village panchayats and promoting cottage industries
Liberal-Intellectual Principles: Focuses on individual rights and liberties

The DPSP are found in Part IV of the Constitution of India, from Articles 36 to 51.

Parliamentary System in India

India is a federal democratic republic with a parliamentary government similar to the UK's. Its legislative branch includes the President, the Rajya Sabha (the upper house), and the Lok Sabha (the lower house).

Features

1. Nominal and Real Head: The head of state, like the President, has a ceremonial role and is the nominal executive.

The Prime Minister is the real head of government.

Article 75 allows the President to appoint the Prime Minister, who leads a council of ministers to advise the President (as stated in Article 74).

2. Executive in Legislature: The executive is part of the legislature. To be a member of the executive, a person must be in Parliament. If not, they can serve as a minister for up to six months.

3. Majority Party Rule: The party with the most seats in the Lok Sabha forms the government. The President invites the leader of this party to be the Prime Minister and appoints other ministers on the Prime Minister's advice.

4. Parliamentary Opposition: Since no party has a full majority, the opposition is important for keeping the government in check and preventing misuse of power.

Federal system

A federal state has two levels of government: one at the central level and another at the state level.
A federal system also includes three key features:

i. A written constitution

ii. A division of powers between the central and state governments

iii. Judicial supremacy to interpret the constitution.

Centre-State Relations

Centre-state relations in India are the dynamic of how the central government and state governments share powers and responsibilities.

The Indian Constitution's federal system divides legislative, executive, and financial powers between the center and the states.

The **administrative relations** between the central and state governments are explained in Articles 256 to 263 of the Constitution. These ensure cooperation between the two while keeping the country united.

For **legislative subjects**, the Constitution divides them into three lists: the Union List (for the central government), the State List (for state governments), and the Concurrent List (for both).

The **judicial system** is a single system for the whole country, applying both central and state laws, with no separate courts for each.

Amendment of the Constitutional Powers and Procedure

Article 368 of the Constitution allows Parliament to amend the Constitution.
The process is:
1. An amendment bill is introduced in either House of Parliament (not in state legislatures) by any member, without needing the President's approval.

2. The bill must be passed by a two-thirds majority in both Houses.

3. If the bill affects federal provisions, half of the states must approve it.

4. Once passed by Parliament and the states (if needed), the bill is sent to the President, who must give approval.

5. After the President's assent, the bill becomes law, and the Constitution is amended.

Emergency provisions in Indian Constitution

The Indian Constitution allows the President to declare three types of emergencies:

1. National Emergency (Article 352):

- Declared when India's security is threatened by war, external aggression, or armed rebellion.
- Requires approval by a special majority in Parliament.
- The Lok Sabha can revoke it if requested by at least 1/10th of its members.

2. State Emergency (President's Rule) (Article 356):

- Imposed when a state fails to function according to the Constitution.
- The central government governs the state through the Governor.

3. Financial Emergency (Article 360):

- Declared when India's financial stability is threatened.
- It has never been used in India.

Local self-government

Local self-government in India is a system where local bodies are elected by the people to manage the affairs of local communities.

It is the third tier of government in India, below the state and central governments.

Local self-government in India operates through:

Urban areas: Managed by municipalities and municipal corporations.

Rural areas: Governed by Zila Parishads, block samitis, and panchayats.